

The Constitution does not speak of Presidential papers, just as it does not speak of workpapers of Members of Congress or of judges.⁹ But there can be no room for doubt that, up to now, it has been the implied prerogative of the President—as of Members of Congress and of judges—to memorialize matters, establish filing systems, and provide unilaterally for disposition of his workpapers. Control of Presidential papers is, obviously, a natural and necessary incident of the broad discretion vested in the President in order for him to discharge his duties.¹⁰

To be sure, we recognized a narrowly limited exception to Presidential control of Presidential papers in *United States v. Nixon*, 418 U. S. 683 (1974). But that case permits compulsory judicial intrusions only when a vital constitutional function, *i. e.*, the conduct of criminal proceedings, would be impaired *and* when the President makes no more “than a generalized claim of . . . public interest . . .,” *id.*, at 707, in maintaining complete control of papers and in preserving confidentiality. That case, in short, was essentially a conflict between the Judicial Branch and the President, where the effective functioning of both branches demanded an accommodation and where the prosecutorial and judicial demands upon the President were very narrowly restricted with great

⁹ As to congressional papers, see *supra*, at 510–511. Despite the Constitution’s silence as to the *papers* of the Legislative Branch, this Court had no difficulty holding those papers to be protected from control by other branches. See also MR. JUSTICE BRENNAN’s dissenting opinion in *United States v. Brewster*, 408 U. S. 501, 532–533 (1972), where he quotes approvingly from *Kilbourn v. Thompson*, 103 U. S. 168 (1881), and *Coffin v. Coffin*, 4 Mass. 1 (1808). In both of those cases, *written* materials by legislators were deemed to be protected by legislative immunity from intrusion or seizure.

¹⁰ This discretion was exercised, as we have seen, by President Washington in the face of a congressional demand for production of his workpapers.

Obviously, *official documents* fall into an entirely different category and are not involved in this case.